

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: April 17, 2025

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 5 p.m. on Wednesday. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html>; (2) participants will then be prompted to join the courtroom's Zoom hearing session; and (3) the calendar will be displayed and participants will then be instructed to rename their Zoom name to include their hearing's calendar number. Check-in instructions and an instructional video are available on the court's website. Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." (<https://www.occourts.org/system/files/hr/div3.pdf>.)

#		
100	Foster vs. Leong 24-01405974	Defendants, Joy Marie Leong ("Joy") and Madeline Li Leong ("Madeline") ("Moving Defendants"), demur to the first through seventh causes of action of the Complaint of Plaintiff, Gerald Foster, as an individual and as Co-Trustee of the Foster Living Trust dated May 15, 2006 ("Plaintiff" or "Jerry").

Plaintiff's Complaint asserts seven causes of action. The first through fifth, and seventh causes of action are asserted against Joy. The fifth through seventh causes of action are asserted against Madeline.

As a threshold matter, the Court notes that the opposing points and authorities is 17 pages long, and is, thus, 2 pages over the 15-page limit. The Court disregards pages 20-21. (California Rules of Court, rule 3.1113(d), (g).)

Stay

Initially, Moving Defendants contend that this Court should exercise its broad discretion under Code of Civil Procedure section 128(8) and stay this action pending determination in the probate action as the pending conservatorship action will determine whether Jerry is competent to bring this lawsuit.

Plaintiff contends that a stay should be sought through a motion rather than a demurrer, as the latter is not designed to address issues requiring factual analysis or evidence beyond the pleadings, and that Moving Defendants improperly offer evidence of additional facts which should not be considered.

The Court has the power to control its process and orders so as to make them conform to law and justice. (Code Civ. Proc. § 128(a)(8).) " 'California courts have inherent power to "... control [their] proceedings.' " (*Vidrio v. Hernandez* (2009) 172 Cal.App.4th 1443, 1454, 92 Cal.Rptr.3d 178, *quoting Bauguess v. Paine* (1978) 22 Cal.3d 626, 637, 150 Cal.Rptr. 461, 586 P.2d 942.) "From their creation by article VI, section 1 of the California Constitution, California courts received broad inherent power 'not confined by or dependent on statute.' [Citations.] This inherent power includes 'fundamental inherent equity, supervisory, and administrative powers, as well as inherent power to control litigation.' [Citation.]" (*Stephen Slesinger, Inc. v. Walt Disney Co.* (2007) 155 Cal.App.4th 736, 758.)

It does not appear to the Court that an opposition to a demurrer is the proper procedural vehicle to seek a stay of this action

pending resolution of the conservatorship action. The Complaint alleges that on or about January 3, 2024, Joy filed a Petition for Conservatorship of Person and Estate of Plaintiff. (Complaint, ¶ 50.) However, no evidence regarding the conservatorship proceeding that could be considered on a demurrer is submitted, including but not limited to the status of the conservatorship proceeding and the issues in that proceeding and the probate actions, to support Moving Defendants' assertions that the pending conservatorship proceeding will determine whether Plaintiff is competent to bring this lawsuit, and that the trust action will determine the proper allocation of the Trust estate.

First Cause of Action for Breach of Fiduciary Duty – Duty of Good Faith

Moving Defendants contend that the Complaint is entirely uncertain because (1) the Complaint is brought by Jerry in his individual capacity and as a co-trustee of the Foster Living Trust dated May 15, 2006 ("Trust"), but the Complaint does not indicate which causes of action Jerry is supposedly pursuing individually and which are brought as co-trustee of the Trust, (2) no trust instruments are attached to the Complaint, (3) the Complaint does state in which capacity Joy is being sued, and (4) the cause of action references a power of attorney Jerry executed in 2020, but it is not attached to or described in the Complaint, and it is uncertain what powers Joy was provided. They also contend that a cause of action for breach of fiduciary duty is not stated as the Complaint fails to articulate a breach in light of the lack of clarity surrounding the power of attorney.

Plaintiff contends that the cause of action is not uncertain because it is evident from the Complaint that: (1) any claims regarding the Trust property are brought in Plaintiff's capacity as trustee, and any claims otherwise are brought in his capacity as an individual; (2) Joy's acts committed between October 15, 2020 and September 7, 2023, were committed in her capacity as power of attorney, and that Joy's acts from September 7, 2023 and on, were done in either her capacity as power of attorney or trustee. (Complaint, ¶¶ 16, 19, 20, 30, 68.) With regards to what capacity Joy is

being sued, Plaintiff contends that he may plead alternative or inconsistent allegations when there is uncertainty about the facts or legal theories, including pleading in different capacities, as long as the claims arise from the same general set of facts, and that Plaintiff does not know whether Joy purportedly acted as trustee or power of attorney when she committed the acts alleged in the Complaint. Plaintiff additionally contends that Plaintiff does not have to attach a copy of the trust documents pursuant to Probate Code section 18100.5 and that the Complaint alleges that Joy informed Plaintiff that she took a copy of the Trust so he has no copy of his own in his possession. (Complaint ¶ 46.) Plaintiff further contends that a copy of the Power of Attorney does not need to be attached to the Complaint, and Joy's powers under the Power of Attorney need not be set out in the Complaint because the Complaint alleges that under Probate Code section 39, an attorney-in-fact under a power of attorney is a fiduciary and thus owes fiduciary duties to her principal. Lastly, Plaintiff contends that this cause of action is thus, sufficiently pled.

Here, the Complaint alleges that on or about May 16, 2006, Plaintiff and his wife established the Trust. (Complaint, ¶ 16.) It is alleged that on or about August 24, 2015, Plaintiff's wife passed away, and that thereafter, Plaintiff was the sole Trustor and Trustee of the Trust. (Complaint, ¶ 22.) The Trust's properly includes, Southern California Industries, Inc. ("SCI"), and monies that are and/or were held in the Trust's and SCI's bank accounts. (Complaint, ¶ 19.) It is alleged that on or about October 15, 2020, Plaintiff executed a Durable Power of Attorney designating Joy. (Complaint, ¶ 68.) It is alleged that in or around 2022, Joy took on the task of paying Plaintiff's bills using the funds in Plaintiff's Wells Fargo Trust, personal, and corporate bank accounts (collectively, "WF Accounts"), and that Joy would routinely have Plaintiff sign several blank checks, which she told him would be used to pay Plaintiff's bills, and that on or about May 17, 2023, Joy's access to the WF Accounts and online account access were frozen. (Complaint, ¶¶ 24, 25, 27.) Plaintiff's niece, Mona Busak ("Mona") took Plaintiff to a Wells Fargo branch location where a Wells

		Fargo bank informed them that the WF Accounts were froze due to suspicious activity where seven checks has been written to Joy, Lucille Ann Wang aka Lucille Ann Leong ("Lucille"), and Madeline, individual and/or in their capacities as trustees for various trusts, in an amount totaling approximately \$136,000. (Complaint, ¶ 28.) On September 7, 2023, Joy used the Wells Fargo Bank's notary to notarize a Resignation of Trustee and Acceptance by Successor Trustee that removed Plaintiff as Trustee of the Trust and designated Joy as the Successor Trustee such that she became the purported Trustee of the Trust. (Complaint, ¶¶ 30, 69.) Although the Complaint does not clearly set forth in what capacity Plaintiff brings each cause of action, this does not render the Complaint so incomprehensible that Moving Defendants cannot reasonably respond. Similarly, while the Complaint does not specify in what capacity Joy is being sued as to each cause of action, the Complaint is not so incomprehensible that Moving Defendants cannot respond. " 'When a pleader is in doubt about what actually occurred or what can be established by the evidence, the modern practice allows that party to plead in the alternative and make inconsistent allegations.' [Citation.] This doubt can arise when plaintiffs are certain of their legal rights but unsure about some of the ultimate facts or when plaintiffs are reasonably certain of the fact but are unsure of their legal rights. [Citation.] To accommodate these uncertainties, plaintiffs can generally plead 'alternative factual allegations relying on alternative legal theories.' [Citation.]" (<i>Batta v. Hunt</i> (2024) 106 Cal.App.5th 295, 304.) In reply, Moving Defendants contend that this is not an issue of alternative or inconsistent theories but that there are distinct claims, i.e., claims brought by or against a trustee relating to trust property and claims brought by an individual relating to non-trust property, improperly combined into a single cause of action. This specific argument is not raised in the demurrer but appears related to the argument about the applicability of Probate Code section 17000 Moving Defendants contend that any matters concerning the Trust
--	--	---

		including claims by Plaintiff as trustee, or claims against Joy in her capacity as trustee, are subject to the exclusive jurisdiction of the probate court pursuant to Probate Code section 17000, and that this point is not disputed and therefore conceded by Plaintiff. Probate Code section 17000(a) states, “[t]he superior court having jurisdiction over the trust . . . has exclusive jurisdiction of proceedings concerning the internal affairs of the trust.” Moving Defendants provide no explanation for the meaning of “internal affairs of the trust,” and do not show that the claims here concern the internal affairs of the trust. Additionally, Probate Code section 17000(b)(3) states that the superior court having jurisdiction over the trust has concurrent jurisdiction of actions and proceedings involving trustees and third persons. The instant case involves claims by and against trustees and third persons such as Madeline and Lucille. As a result, Moving Defendants do not show that claims brought by or against a trustee relating to trust property in this case are entirely distinct and are subject to the exclusive jurisdiction of the probate court. Lastly, Moving Defendants cite to no authority providing that Plaintiff must attach a copy of the Trust documents or a copy of the Power of Attorney. The Complaint sufficiently alleges that Joy owed Plaintiff a fiduciary duty as Plaintiff’s attorney in fact beginning on or about October 15, 2020, and as the purported Trustee of the Trust on or about September 7, 2023. (Complaint, ¶¶ 68-71.) Based on the foregoing, the demurrer to the first cause of action is OVERRULED. <i>Second Cause of Action for Breach of Fiduciary Duty – Duty of Loyalty</i> Moving Defendants contend that the second cause of action is essentially identical to the first cause of action and suffers from all the same deficiencies, as well as that the second cause of action is duplicative of the first cause of action. Plaintiff contends that the second cause of action is sufficiently pled and is not uncertain for all of the same reasons discussed above,
--	--	--

		and that it is pled in the alternative, which is permissible. The second cause of action is not uncertain, as discussed above. The Complaint alleges that Joy, as Plaintiff's attorney in fact, and as purported Trustee of the Trust, owed Plaintiff the duty of undivided loyalty. (Complaint, ¶¶ 76-79.) As the first cause of action is based on the duty of good faith, the Court finds that the second cause of which is based on the duty of loyalty is not duplicative of the first cause of action. As set forth above, Plaintiff may plead alternative legal theories. " 'Given that alternative legal theories may be pled, 'it is not proper for the judge to force upon the plaintiff an election between those causes which he has a right to plead.' [Citation.]" (Batta v. Hunt (2024) 106 Cal.App.5th 295, 304.) The demurrer to the second cause of action is OVERRULED. <i>Third Cause of Action for Fraud – Intentional Misrepresentation</i> Moving Defendants contend that the third cause of action is uncertain for the same reasons stated above. They also contend that the third cause of action is not pleaded with the requisite specificity because the Complaint does not plead facts showing how, when, where, to whom, and by what means the alleged representations were tendered, and makes only conclusory allegations, as well as that the Complaint fails to allege with specificity intent to defraud, justifiable reliance and/or damages since Joy had power of authority. Plaintiff contends that the third cause of action for fraud is not uncertain, as discussed above. Plaintiff also contends that the third cause of action is pled with the requisite specificity, and that paragraph 25 establishes the timeframe in which Joy repeatedly made the statement, and that the statement was made orally in person, as Plaintiff signed the checks that were then given over to Joy. Plaintiff also contends that regardless of what powers were enumerated in the Power of Attorney, Joy had a statutory duty to exercise authority subject to her fiduciary duties.
--	--	--

		" 'The elements of fraud that will give rise to a tort action for deceit are: '(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.' " (<i>Engalla v. Permanente Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 974.) To survive demurrer, plaintiff must plead facts that "show how, when, where, to whom, and by what means the representations were tendered." (<i>Hamilton v. Greenwich Investors XXVI, LLC</i> (2011) 195 Cal.App.4th 1602, 1614.) "Fraud must be pleaded with particularity. General and conclusory allegations are inadequate. [Citation.]" (<i>Laukhart v. El Macero Homeowners Assn.</i> (2023) 92 Cal. App. 5th 889, 903.) "Fraud must be specifically pleaded; a general pleading of the legal conclusion of fraud is insufficient. Every element of the cause of action must be alleged in full, factually and specifically. [Citation.]" (<i>Tindell v. Murphy</i> (2018) 22 Cal.App.5th 1239, 1249.) "This pleading requirement of specificity [for a fraud cause of action] applies not only to the alleged misrepresentation, but also to the elements of causation and damage." (<i>Moncada v. West Coast Quartz Corp.</i> (2013) 221 Cal.App.4th 768, 776.) Less specificity is "required of fraud claims 'when "it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy," [citation]; "[e]ven under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party" ' [Citation.]" (<i>Alfaro v. Community Housing Improvement System & Planning Assn., Inc.</i> (2009) 171 Cal.App.4th 1356, 1384.) The third cause of action is not uncertain, as discussed above. With regards to the sufficiency of the allegations, the Complaint alleges that "[s]ince 2022, Joy would routinely have Plaintiff sign several blank checks, which she told him would be used to pay Plaintiff's Bills," and that "[i]n or about May 2022 through December
--	--	--

2023, Joy knowingly misrepresented to Plaintiff that the checks she was having him sign would be used to pay Plaintiff's bills," but that instead, Joy used some of the checks that she had Plaintiff sign for other purposes, (Complaint, ¶¶ 25, 84-85.) Plaintiff alleges that, "Joy knew that the representations were false when she made them, as the GST Calculations shows that Joy had a plan to gift certain amounts to herself and others since at least 2016," that "Joy intended that Plaintiff rely on her misrepresentations in order to have him sign the blank checks without question," and that "Plaintiff reasonably relied on Joy's representations, as Joy is his stepdaughter." (Complaint, ¶¶ 86-88.)

Based on the allegations above, although less specificity is required as it appears from the nature of the allegations that Joy necessarily possesses information concerning the alleged fraudulent misrepresentations, Plaintiff does not allege the misrepresentations with sufficient specificity as to how, where, and by what means the alleged misrepresentations were tendered. While the opposition asserts that the misrepresentations were made orally in person, this is not alleged in the Complaint.

With regards to the elements of intent to defraud, justifiable reliance, and/or damages since Joy had the power of attorney, these elements are sufficiently alleged. Taking the allegations as true, a reasonable inference is that Joy did not have the authority to take certain acts or make certain financial decisions on Plaintiff's behalf. Whether Joy, in fact, had authority to make financial decisions is properly before the Court on demurrer. "A demurrer tests only the sufficiency of the allegations. It does not test their truth, the plaintiff['s] ability to prove them or the possible difficulty in making such proof." (*Saunders v. Superior Court* (1994) 27 Cal.App.4th 832, 840.)

The demurrer to the third cause of action is therefore SUSTAINED, with 20 days' leave to amend.

Fourth Cause of Action for Abduction

Moving Defendants contend that the fourth cause of action for abduction fails because the

		Complaint judicially admits Jerry was not restrained from returning to California during a trip to Texas, and that on its face, the Complaint demonstrates that Jerry was not restrained in any manner. Plaintiff contends that the fourth cause of action for abduction sets out that Plaintiff was restrained from returning to California, and that Plaintiff has, in fact, alleged that he was restrained from returning to California. Plaintiff contends that while the Complaint alleges that Mona traveled to Texas, picked Plaintiff up from HarborChase and returned to California with Plaintiff, Defendants are improperly interpreting that to mean that Plaintiff was not restrained from returning to California, but that Plaintiff's ability to return to California was methodically limited/prohibited/hindered by Joy and Lucille's actions. Welfare & Institutions Code section 15610.06 states: " 'Abduction' means the removal from this state and the restraint from returning to this state, or the restraint from returning to this state, of any elder or dependent adult who does not have the capacity to consent to the removal from this state and the restraint from returning to this state, or the restraint from returning to this state, as well as the removal from this state or the restraint from returning to this state, of any conservatee without the consent of the conservator or the court." Here, Plaintiff alleges Joy removed Plaintiff from his home in California under the pretense of a family reunion and put him in a senior assisted living facility in Texas. (Complaint, ¶¶ 32, 34, 93.) Plaintiff also alleges that his cell phone was taken away from him and he was given a different cell phone with only three contacts, Joy, Lucille, and Madeline. (Complaint, ¶¶ 35, 96.) Accepting the allegations as true, Joy picked up Plaintiff from California and transported him to a different state, did not disclose to him where he was, and took his cell phone away, removing his ability to contact others. Plaintiff, who was 94 years old when this action was filed in 2024, would have been around 93 years old when these events occurred in 2023 and would not have been able to drive himself
--	--	---

	home to California. (Complaint ¶ 17.) While it is alleged that residents at the senior assisted living center were allowed to leave, this does not mean that Plaintiff had any meaningful option to leave. (Complaint, ¶ 38.) Thus, the demurrer to the fourth cause of action is OVERRULED. <i>Fifth Cause of Action for Financial Abuse</i> Moving Defendants contend that the fifth cause of action for financial elder abuse is uncertain for the same reasons discussed above. They also contend that as to Madeline, there are no facts that she engaged in any improper behavior relating to Jerry's property, and that while Madeline is accused of having received payments resulting from Joy's alleged actions, there are no allegations that Madeline was aware of any supposed improprieties and/or that she obtained property for a wrongful use, with the intent to defraud and/or by undue influence. Plaintiff contends that the fifth cause of action for financial abuse is not uncertain, as set forth above, and sufficiently alleges financial impropriety by the Defendant. The fifth cause of action is not uncertain, as discussed above. Welfare & Institutions Code section 15610.07(a) defines elder abuse as "[p]hysical abuse, neglect, financial abuse, abandonment, isolation, abduction, or other treatment with resulting physical harm or pain or mental suffering;" or "[t]he deprivation by a care custodian of goods or services that are necessary to avoid physical harm or mental suffering." To establish a claim for financial elder abuse a plaintiff must establish the following: (1) defendant took, hid, appropriated, obtained or retained plaintiff's property or assisted in same; (2) plaintiff was 65 years of age or older at the time of the conduct; (3) defendant did so for a wrongful use or with the intent to defraud or by undue influence; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm. (California Civil Jury Instructions, CACI No. 3100.) Financial elder abuse occurs when a
--	---

	person takes, secretes, appropriates, obtains, or retains real or personal property of an elder for a wrongful use or with intent to defraud, or assists a person in doing the same. (Welf. & Inst. Code, § 15610.30(a)(1)-(2).) Here, the Complaint alleges that on or about December 21, 2023, Madeline had stuffed documents and/or items under her clothing, and that after she left, Plaintiff noticed that valuable items had been removed from his home, including the urn containing his wife's ashes and Chinese artifacts. (Complaint ¶¶ 46-47.) As a result, the Complaint sufficiently alleges that Madeline obtained Plaintiff's property for a wrongful use. The demurrer to the fifth cause of action is OVERRULED. <i>Sixth Cause of Action for Assault</i> Moving Defendants contend that the sixth cause of action for assault against Madeline is based on an incident in which she simply pulled Jerry into his home, and that the Complaint does not adequately allege Madeline acted with intent to cause a harmful or offensive contact, and/or that she threatened to touch Jerry in a harmful or offensive manner. Plaintiff contends that the sixth cause of action sufficiently establishes that Madeline intended to cause offensive contact, and that it is a reasonable inference that having been found out, Madeline was in agitated state and intended to touch Plaintiff in a harmful or offensive manner. "The essential elements of a cause of action for assault are: (1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed she was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm." (<i>So v. Shin</i> (2013) 212 Cal.App.4th 652, 668-669.)
--	---

	The Complaint alleges that Madeline pulled and dragged Plaintiff inside his home, and that when a Sheriff officer came, Madeline stopped and "acted intending to cause harmful or offensive contact to Plaintiff." (Complaint, ¶ 108.) Plaintiff also alleges that Madeline "did in fact aggressively pull and drag Plaintiff inside his home, offending his sense of personal dignity." (Complaint, ¶¶ 45, 109.) Accepting these allegations as true, the Complaint sufficiently alleges that Madeline acted with intent to cause harmful or offensive contact. The demurrer to the sixth cause of action is OVERRULED. <i>Seventh Cause of Action for Violation of Penal Code § 496</i> Moving Defendants contend that the seventh cause of action for violation of Penal Code § 496 is derivative of the other causes of action and is uncertain for the same reasons stated above. They also contend that the Complaint fails to adequately allege property was stolen or obtained by theft and/or that Joy or Madeline knew any property was stolen based on the failure to set forth the terms of the power of attorney. They further contend that even if the Complaint did adequately allege Joy knew she had stolen property or committed theft, there is no allegation at all that Madeline was aware of any alleged stolen property or theft. Plaintiff contends that the seventh cause of action is not uncertain, as set forth above. Plaintiff also contends that this cause of action is sufficiently alleged as the Complaint alleges that Defendant repeatedly accepted the fraudulently signed checks from Joy, not Plaintiff, and cashed them, and that Defendant was with Plaintiff during the time that several of the "gift" checks were made out and cashed, and knew that Plaintiff did not authorize the checks. Plaintiff additionally contends that he has sufficiently pled that the property in question was already stolen at the time that Madeline received it and that she knew it was stolen, or that she committed the "actual theft of the property." The seventh cause of action is not uncertain, as discussed above
--	--

As to the sufficiency of the allegations to state a claim, pursuant to Penal Code section 496(a), any person who receives stolen property knowing the property to be stolen, or aids in concealing or withholding any property from the owner while knowing the property to be so stolen or obtained, shall be punished by imprisonment.

Here, the Complaint alleges, as relevant here, that Joy and Madeline fraudulently converted Plaintiff's funds through the use of "gift" checks. (Complaint, ¶¶ 28, 55, 117.) The Complaint also alleges Joy used blank checks that she had Plaintiff sign under the guise of paying Plaintiff's bills but made numerous checks out to Lucille and Madeline between May 23, 2022 and December 13, 2023, and that several of these check were written and cashed during the 12-day period during which Joy and Lucille were in California and while Plaintiff was at HarborChase. (Complaint, ¶ 55.) It further alleges that gift checks for large amounts were not issued to Plaintiff's family members until Joy took over the paying of Plaintiff's bills, and that upon Plaintiff's requests for return of his funds and property, Joy and Madeline, along with other co-defendants, refused. (Complaint, ¶¶ 56, 118.)

Accepting these allegations as true, the Complaint sufficiently alleges that Plaintiff's property was stolen or obtained by theft and/or that Joy or Madeline knew property was stolen. A reasonable inference may be drawn from the allegations that Madeline was aware that Joy did not have the authority to make out the checks, especially those that were written and cashed while Plaintiff was not in the state. Thus, the demurrer to the seventh cause of action is OVERRULED.

Plaintiff to file a first amended complaint within 20 days, as to the third cause of action for fraud consistent with the Court's ruling above.

The Case Management Conference is continued to June 26, 2025 at 1:30 p.m.

Moving Defendants to give notice.

101	City of Westminster vs. Morgan 24-01417499	Defendant demurs to the entire First Amended Complaint, asserting all claims arise from overpayment of workers' compensation benefits and, consequently, fall within the jurisdiction of the workers' compensation appeals board. Pursuant to Labor Code sections 5300, subdivision (a), a proceeding "[f]or the recovery of compensation, or concerning any right or liability arising out of or incidental thereto," shall be instituted before the appeals board and not elsewhere. (Lab. Code, § 5300, subd. (a).) Pursuant to Labor Code section 3207, "compensation" means "compensation under this division" including "every benefit or payment conferred by this division upon an injured employee...." (Lab. Code, § 3207.) Neither Defendant nor the Complaint identify a particular provision within the workers' compensation statutory scheme, from which the "Salary Continuation" payments received by Defendant arise. Instead, the Complaint alleges these payments were made pursuant to a policy of the City. "Pursuant to the City's policy ('Salary Continuation'), 'Non-sworn employees shall be entitled to a temporary disability at a maximum of six (6) months paid leave for job connected illness or injury, unless disability becomes permanent and stationary prior to the expiration of six (6) months, such time not to be charged against sick leave or vacation. If disability exceeds six (6) months, employee may elect to receive only workers' compensation benefits, or have sick leave or vacation charged for the difference between the workers' compensation and his/her regular salary and receive a full paycheck, not to exceed the maximum disability period allowed under Workers' Compensation Law.' Therefore, an employee can receive a total of 26 weeks of Salary Continuation at 75% of their salary." (§6 of FAC.) Additionally, the Complaint distinguishes between "Salary Continuation" payments and workers' compensation, alleging Defendant
-----	---	---